

		documents during this four-year litigation. Plaintiff contends that the third-party e-discovery database was necessary to efficiently process, organize, review, and present the documents at deposition and trial. In support of their Motion, Defendants cite <i>Science Applications Int'l Corp. v. Superior Court</i> (1995) 39 Cal.App.4th 1095. There, the court held that costs incurred in hiring an outside firm to assist with document control, storage, and accessing documents in discovery and at trial, were not recoverable. (<i>Id.</i> at p. 1104.) Here, Plaintiff used its third-party e-discovery database vendor to perform the same kinds of tasks—organizing, review, and presenting documents in discovery and at trial. (Declaration of Steven T. Graham ¶ 6.) The Court agrees that these costs are not recoverable. Thus, the Motion to Tax as to \$51,793.42 under Item 16 is also GRANTED. <i>Defendants to give notice.</i>
109	Southwest Painting, Inc. vs. Newcastle Enterprises, Ltd 19-01099958	Defendant, Newcastle Enterprises, LTD. ("Newcastle") moves for an order striking and/or taxing Plaintiff, Southwest Painting, Inc.'s ("Southwest") Memorandum of Costs filed on February 13, 2025. Newcastle contends that the Court should strike Southwest's Memorandum of Costs in its entirety because it is unsupported by documentary evidence, although Page 4 of the Memorandum of Costs references invoices. Alternatively, Newcastle contends that Item Nos. 1, 5, 8, 11, 12, 14, and 15 sought in the Memorandum of Costs should be individually stricken or reduced in amount as excessive or not allowed as well as no supported by any invoice or similar documentary evidence. Newcastle contends that the instant motion is timely served and filed. Southwest contends that the attempted filing of this motion in Department C23 fails to meet the requirement of timeliness because Department C23 does not have current jurisdiction over the matter and rejected the filing, thus, that the motion should be rejected on the grounds of untimeliness alone. Southwest also contends that Defendant's reliance on the case <i>Jones v. Dumrichob</i> (1998) 63 Cal.App 4th 1258 for the

	proposition that Plaintiff must provide each and every invoice that might support each cost requested is misplaced, and that Newcastle does not provide any evidence to the Court that the entries provided by Plaintiff were not accurate and not for costs “necessarily incurred in this case.” Southwest contends that Newcastle merely states that the entries are “suspicious” which is not evidence and that the Motion should fail on this basis alone. Southwest contends that if Court determines that the motion was timely filed and the cost items challenged were properly put in issue, Plaintiff has attached the invoices or other proof of payment for every cost sought, with the one exception of \$550 in witness fees paid to the Buena Park official which were listed both for Item No. 5 and Item No. 8. Initially, the Court notes that Newcastle incorrectly refers to “Models enlargements and photocopies of exhibits” as Item No. 12. It is Item No. 13 on the Memorandum of Costs (Summary), and is referred as such accordingly. <i>Timeliness of Motion</i> Newcastle contends that the motion was timely served and filed because the Memorandum of Costs was filed February 13, 2025, and this Motion to Tax Costs was filed on February 21, 2025. Southwest contends the motion was not timely filed because Newcastle attempted to file the motion in Department C23, which rejected the filing. Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum, and is extended as provided in Code of Civil Procedure section 1013 (mail), and in Code of Civil Procedure section 1010.6(a)(4) (electronic). (California Rules of Court, Rule 3.1700(b)(1).) Although Newcastle incorrectly noticed the hearing before the Honorable Derek W. Hunt (retired), the motion was filed on February 21, 2025, within 15 days of the Memorandum of Costs filed on February 14, 2025, and the motion was continued to the correct judicial officer and Department. Southwest cites to no authority which supports the proposition that an improperly noticed motion to tax and/or
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strike costs renders it untimely under the circumstances here. The Court finds the instant motion to tax and/or strike costs was timely filed.

Standard on Motion to Strike/Tax Costs

Newcastle contends that the entire Memorandum of Costs should be stricken because it was not supported by documentary evidence and no invoices were attached.

Southwest contends that Newcastle has not properly put the Memorandum of Costs or challenged cost items at issue.

"If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266 ("*Jones*").) Statements in points and authorities and declaration of counsel are insufficient to rebut the prima facie showing. (*Jones, supra*, 63 Cal.App.4th at p. 1266.) For items that are properly objected to, the burden of proof is on the party claiming them as costs. (*Ibid.*)

"There is no requirement that copies of bills, invoices, statements, or any such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. [Citation.] Once this occurs, the issue becomes whether the required documentation must be of evidentiary quality." (*Jones, supra*, 63 Cal.App.4th at p. 1267.)

" 'In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. 'If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.' [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.' [Citation.]" (*Rozanova v. Uribe* (2021) 68 Cal.App.5th 392, 399.)

		Code of Civil Procedure section 1033.5(a) sets forth the items that are allowable as costs. Costs are allowable if incurred, whether or not paid, and allowable costs shall be reasonable in amount and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. § 1033.5(c)(1)-(3).) Here, Southwest filed a Memorandum of Costs (Summary), Judicial Council of California Form MC-010, signed by Southwest's counsel, and declaring that "the items of costs are correct and were necessarily incurred in this case." (See ROA 475.) This verified Memorandum of Costs is prima facie evidence of their propriety and there is no requirement that invoices be attached. Thus, the motion to strike the Memorandum of Costs on the grounds that documentary evidence was not provided and that Southwest failed to attach invoices is denied. The arguments of Newcastle's counsel in the opposing points and authorities is insufficient to rebut the prima showing, and the declaration of William Welden which generally asserts that his education, experience and training gives him the basis for his opinions of the reasonableness of the contents of the Memorandum of Costs, does not provide evidentiary support for each particular assertion as to the reasonableness of each cost item challenged. As Southwest made a prima facie showing of the propriety of the costs claimed, it is Newcastle's burden of showing that the challenged cost items were not reasonable or necessary. Newcastle's various assertions about the general costs of certain items is made without evidentiary support, and assertion that invoices are needed to determine reasonableness is insufficient to meet Newcastle's burden. Item Nos. 1, 11, 13, and 14 are expressly allowed by statute and appear proper on their face. (Code Civ. Proc. § 1033.5(a)(1) [filing and motion fees], (a)(4) [service of process], (a)(11) [court reporter fees as established by statute], (a)(13) [models, enlargements of exhibits and copies of exhibits], (a)(14) [fees for electronic filing or service of documents].) As Newcastle fails to meet its burden to show
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	that these claimed costs are not reasonable or necessary, the motion to tax these cost items is DENIED on this basis. The amount claimed for Item No. 11 is amended as discussed below. Item Nos. 5, 8, and 15 appear to include costs that are not expressly allowed by the statute, and as to certain of these items, Southwest concedes or acknowledges arithmetic errors regarding certain cost items as discussed below. 5. Service of process - \$1,853 Newcastle does not object to the claimed cost of \$100 for service of process on "Newcastle/Carlin," leaving \$1,753 at issue. Southwest acknowledges an arithmetic error of \$10, as the Memorandum of Costs seek \$1,050 for subpoenas for the June trial date, but the actual sum is \$1,040. Thus, Court GRANTS the motion to tax \$10 from Item No. 5. Costs in the amount of \$1,843 is reasonable in amount and necessary to the conduct of the litigation. 8. Witness fees - \$2,509.50 Southwest concedes that \$550 for Mr. Alex Lester of the City of Buena Park was also included under Item No. 5, and that these costs are properly recoverable in Item No. 5 or Item No. 8, such that \$550 should be deducted either from Item No. 5 or Item No. 8. The Court notes that the Memorandum of Costs states the cost was \$572. Therefore, the Court GRANTS the motion to tax \$572 from Item No. 8 which was claimed as costs for the "City of Buena Park/Building Dept." What remains is Southwest's claim for a court-ordered mediator in the amount of \$1,937.50. Fees of expert witnesses ordered by the court are allowable as costs. (Code Civ. Proc. § 1033.5(a)(8).) However, mediator fees are not expressly allowed as a court-ordered expert fee under Item No. 8. While mediator fees might not be properly categorized as a court-ordered witness fee, it has been found reasonably necessary to the conduct of litigation. (Gibson v. Bobroff (1996) 49 Cal.App.4th 1202, 1209-1210.) The Court finds the claimed costs for mediator fees in the amount of \$1,937.50 to be reasonable in
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	amount and reasonably necessary to the conduct of the litigation. Thus, the motion to tax this aspect of costs claimed under Item No. 8, is DENIED. 11. Court Reporter fees - \$4,677.12 Southwest contends that the claimed amount is less than what was actually charged and requests that the Court allow it to amend its cost request to take into account all of the court reporter fees Plaintiff was required to pay for court reporting services at trial which is \$5,566.25, and not the \$4,677.12 claimed in the Memorandum of Costs. The Declaration of Mailei Bennett and the invoices attached as Exhibit D, filed in support of the opposition, indicate that the actual total amount of court reporter fees at trial is \$5,566.25. (Declaration of Mailei Bennett, ¶¶ 6, Ex. D.) The Court finds this cost reasonable and necessary and allows amendment of the Memorandum of Costs to reflect this amount. 15. Other - \$11,218.97 Newcastle contends that this catchall provision cannot be easily analyzed without invoices and asserts that Southwest's bare bones references need invoices. Southwest contends that costs for the licensure fee to CSLB, cash charges for meals and parking are items in the accounting records but that it believes the charges are only for parking at court for trial and motions for which Southwest does not have receipts for cash payments for parking although Mr. Lobherr kept track of the charges and invoiced his client. Southwest also provides that Ms. Bennett has attaches invoices for all items claimed in Item No. 15 in the order that they are listed. As these claimed costs are "other" costs, they are not expressly allowed by statute, nor does Southwest contend that they are expressly allowed. As a result, Southwest has the burden to show that the claimed costs are reasonable and necessary. Items not mentioned in Code of Civil Procedure section 1033.5(a) and items assessed upon application may be allowed or
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	denied in the court's discretion. (Code Civ. Proc. § 1033.5(c)(4).) "[A]ny award of costs – whether categorically recoverable under section 1033.5, subdivision (a) or allowable in the court's discretion under section 1033.5(c)(4) – must meet the requirements of subdivision (c)(2) and (3)." (<i>Segal v. Asics Am. Corp.</i> (2022) 12 Cal.5th 651, 667.) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation, and shall be reasonable in amount. (Code Civ. Proc. § 1033.5(c)(2)-(3).) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court. (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) "[B]ecause the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized." (<i>Ibid.</i>, internal citations omitted.) Here, Southwest claims costs for recording fees (\$207), rush OC Recorder fees (\$144), Court Call services (\$376), deadlines on demand (\$480), postage (\$78.32), electronic production of original client documents (\$131.19), Orange County Superior Court fees (\$267.45), licensure fee (CSLB) (\$134), attorney service court courtesy copies (\$387.50), OCSC Parking fees (trial) (\$177), OCSC meals (during trial) (\$141.80), outside attorney service (motions) (\$1,600), court reporter fees (motions) (\$6,412), research \$667.71, and OCSC fees (\$15), totaling \$11,218.97. The Declaration of Mailei Bennett submitted in support of the opposition provides that Ms. Bennett prepared payment for the two certificates of licensure to the Contractors State License Board, that she "reviewed the case files and located the additional recoverable costs associated with the 'other' category," and that these documents are attached as Exhibit G. (Declaration of Mailei Bennett, ¶ 9, Ex. G.) Exhibit G, however, only includes invoices and documentation for the licensure fee (CSLB) in the total amount of \$134. The opposition does not otherwise provide evidence or citation to authority showing that
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		the remaining claimed costs are reasonably necessary to the conduct of the litigation or reasonable in amount. Consequently, Southwest fails to meet its burden to show that the claimed "other" costs are necessary and reasonable. The Court GRANTS the motion to tax the costs claimed in Item No. 15, except for \$134. In sum, Newcastle's motion to strike the entire Memorandum of Costs is DENIED. The Court DENIES the motion to tax as to Item Nos. 1, 11, 13, and 14. The claimed amount for Item No. 11 is amended to \$5,566.25. The Court GRANTS the motion to tax as to Item Nos. 5, 8, and 15 in part, as stated above. <i>Southwest to give notice.</i>
110	Liu vs. Le 23-01319093	The hearing on Defendant Lucy Pham Le's ("Moving Party") Motion to Consolidate is CONTINUED to June 26, 2025 at 1:30 p.m. in Department W15. According to the proof of service, the moving papers were not served on Defendant Dylan Pham Le. Additionally, the Moving Party did not file a copy of the Notice in each case sought to be consolidated as required by CRC 3.350(a). Accordingly, the hearing is continued so that Moving Party may remedy these defects. <i>Moving party is to give notice of the continuance.</i>
111	National Funding, Inc. vs. Gil and Rivera L.L.C. 24-01403057	Plaintiff National Funding, Inc. ("Plaintiff") moves for summary judgment on its complaint, consisting of two causes of action for breach of contract against Defendant Gil and Rivera L.L.C. dba Big Jerry's Fencing and two causes of action for breach of guaranty against Defendant Daniel Gil. Plaintiff has provided evidence of the following: Plaintiff's wholly owned subsidiary, Quick Bridge Funding LLC ("Quick Bridge") and Gil and Rivera L.L.C. entered into a Business Loan Agreement on or about June 26, 2023 for a loan in the principal amount of \$150,000 ("Loan Agreement No. 1"). (UMF 1.) Gil executed a personal guaranty on that loan.